

CHAPTER 21

An Act to amend the law as to oaths.

[18th May, 1961]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Oaths Act, 1888 (which in certain cases permits persons objecting to being sworn to make a solemn affirmation instead), shall apply in relation to a person to whom it is not reasonably practicable to administer an oath in the manner appropriate to his religious belief as it applies in relation to a person objecting to being sworn on any such ground as is mentioned in section one of that Act. Making of affirmations instead of oaths.

(2) A person who may be permitted under this section to make his solemn affirmation may also be required to do so, and for the purposes of this section "reasonably practicable" means reasonably practicable without inconvenience or delay.

(3) Subsection (2) above shall apply for the purposes also of the following sections (which contain in relation to courts-martial provision similar to subsection (1) above), that is to say,—

(a) section one hundred and two of the Army Act, 1955; and

(b) section one hundred and two of the Air Force Act, 1955; and

(c) section sixty of the Naval Discipline Act, 1957;

and at the end of each of those sections there shall be added a subsection in terms of subsection (2) above.

2.—(1) This Act may be cited as the Oaths Act, 1961, and this Act and the Oaths Acts, 1888 and 1909, may be cited together as the Oaths Acts, 1888 to 1961. Short title, citation and extent.

(2) This Act (except in so far as it is applicable by virtue of subsection (2) of section eighteen of the Government of Ireland Act, 1920, and except as regards courts-martial) shall not extend to Northern Ireland.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Oaths Act, 1888	51 & 52 Vict. c. 46
Oaths Act, 1909	9 Edw. 7. c. 39
Government of Ireland Act, 1920	10 & 11 Geo. 5. c. 67
Army Act, 1955	3 & 4 Eliz. 2. c. 18
Air Force Act, 1955	3 & 4 Eliz. 2. c. 19
Naval Discipline Act, 1957	5 & 6 Eliz. 2. c. 53